

ELECTRONICALLY FILED

CASE NO. 25CI2964

JEFFERSON CIRCUIT COURT
DIVISION FOUR (4)
JUDGE JULIE KAELIN

CHARLES TINKER

PLAINTIFF(S)

VS.

TRIAL AND SCHEDULING ORDER*(*** updated with new deadlines as of June 18, 2025 ***)*

U OF L HEALTH-LOUISVILLE, INC.

DEFENDANT(S)

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I. TRIAL AND FINAL PRETRIAL CONFERENCE (FPTC) DATES:

This case is assigned for **JURY TRIAL** on **November 30, 2026 at 11:00 AM**. No sooner than 30 days prior to trial, a Final Pretrial Conference (FPTC) shall be scheduled by the parties by emailing JunelleAnderson@kycourts.net, copying all other counsel. A FPTC will not be scheduled unless all parties have filed their trial memorandums and it appears that the trial will indeed go forward. At the FPTC, the parties will be expected to report whether or not they will be able to announce “ready” on the date scheduled for trial, and the Court will provide the parties with an overview of the Court’s calendar in the event multiple trials are set on the same date. If no FPTC is set, the parties are requested to inform the Court no later than five (5) days prior to trial whether they are ready to proceed.

The purpose of these deadlines is to allow all parties time to properly prepare for trial without undue expense or burden, and to enable all parties to readily identify any issues the Court may need to decide prior to trial without causing delay. No continuance of the trial date shall be granted without **prior** approval of the Court. Any request for a continuance shall comply with CR 43.03. In the event the trial is rescheduled, the deadlines contained in this Order shall be continued and recalculated in conformity with the new trial and FPTC dates.

II. MEDIATION

The parties are encouraged to seek a mediated settlement prior to the FPTC. Any party may move the Court for an Order requiring mediation and the Court will consider it. Additionally, the Court may, in some cases, determine on its own that mediation is required. Unless otherwise agreed by all parties, the mediation shall comply with JRP 13. If the parties wish to mediate but cannot agree on a mediator, the Court will designate one.

III. MOTIONS

All dispositive Motions, including Motions for Summary Judgment, shall be filed no later than **120 days** prior to trial. For all Motions and Responses, the length shall not exceed 15 pages unless the Court has specifically allowed otherwise. Reply Briefs shall be limited to 10 pages unless the Court has ordered otherwise. Failure to comply with these terms may result in sanctions such as striking the pleading from the record. A movant may file an AOC Form 280, or simply contact the court, if they are awaiting a ruling and have not received one. The court routinely issues orders very quickly, so if you are waiting, please do reach out to us.

Motions related to evidentiary issues should be made well in advance of trial. Motions in limine should only be filed with the trial memorandum, as described on the next page.

IV. DISCOVERY

1. *Generally:* All Discovery shall be completed no later than **150 days** before trial unless good cause is shown. Medical examinations requested by a party shall also be completed no later than **150 days** before trial.
2. *Experts:* If a proper request has been made, literal compliance with CR 26.02 (4)(a)(i) is expected. The parties must identify each person who they expect to call as an expert witness at trial, state the subject matter on which the expert is expected to testify, and state a summary of the grounds for each opinion. Failure to do so may result in exclusion of the expert's testimony. Compliance with CR 26 for *treating* physicians may be deemed complete if all relevant medical records and reports have been provided to opposing counsel. The plaintiff shall file their initial disclosure regarding their expert(s) no later than **180 days** before trial. The defense shall identify their expert(s) no later than **150 days** before trial. Identification of any rebuttal experts must be made within **120 days** before trial, and is limited to rebutting opinions listed in the initial disclosures unless leave of Court is sought and received. Upon disclosure, the parties should be prepared to offer at least three dates for their experts' depositions to be taken.
3. *Witness and Exhibit Lists:* The parties shall exchange witness and exhibit lists no later than **90 days** before trial. The witness list shall state every witness expected to testify and include for each witness their name, address, a brief summary of their expected testimony, and whether they are expected to testify live or by deposition.
4. *Depositions and Responses to Requests for Documents:* Depositions shall be completed no later than **150 days** before trial. The parties shall not file deposition recordings or transcripts in the record except as necessary in relation to Motions, in which case only the relevant portion shall be included. The attorney who took the deposition shall, however, retain the

original file and/or transcript. The parties also should not file with the court any Responses to Requests for Production of Documents unless and until an issue arises concerning the same. Deposition designations must be made no later than **45 days** prior to trial. Objections shall be made as part of the Trial Memorandum due **15 days** before trial.

5. *Damages: 75 days* prior to trial, each party who is claiming damages shall submit an itemization of claimed damages to opposing counsel.

The parties may agree to alter these deadlines, but must seek approval from the court in the form of an Agreed Order. Any opposed request to deviate shall be made by motion.

V. TRIAL MEMORANDUM

Not less than 15 days before trial, all parties shall exchange, and file with the Court, a Trial Memorandum not exceeding twenty (20) pages. Counsel shall be prepared to discuss the contents of these memoranda at the FPTC. The Trial Memorandum may address any matter(s) the party wishes to bring to the Court's attention and shall include the following items:

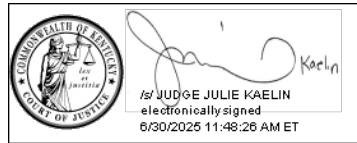
- a) an outline of the factual situation, matters which should be stipulated to, and a concise statement of each issue of law and each issue of fact recognized by the party;
- b) proposed jury instructions in hard copy with a digital version in Word format available to be emailed to the Court if requested;
- c) any Motion(s) *in limine* **which could not have been filed sooner;**
***NOTE: DO NOT FILE MOTIONS IN LIMINE SEPARATELY FROM THE TRIAL MEMORANDUM IF YOU ARE FILING THEM AT OR AFTER THE TIME OF FILING THE TRIAL MEMORANDUM**
- d) a list of all exhibits and documentary evidence expected to be offered into evidence at the trial (counsel shall be prepared to concede or object to the admissibility of the opposing party's exhibit(s) when the case is called for trial);
- e) objections to portions of any depositions to be read at trial;
- f) whether any rebuttal testimony is anticipated;
- g) the anticipated amount of time needed at trial; and
- h) a statement of the status of settlement negotiations.

VI. OTHER TRIAL CONSIDERATIONS

The Court requires a "clean-edit" for any video deposition to be shown to the jury. Counsel are cautioned to confirm the video will play on the Court's system unless counsel is bringing their own equipment to play the deposition. Arrangements may be made with court staff if any party wishes to use the courtroom to test media prior to trial. Connecting cables and

devices not installed in the courtroom must be provided by counsel. Counsel is strongly encouraged to familiarize themselves with the technology *prior to trial*.

Exhibits shall be marked with the case number and appropriate label prior to trial. These labels are available to the attorneys if requested. Copies shall be made available at trial to the Court and opposing counsel. Pursuant to Rule 98(2)(c), a photograph must be taken of any exhibit, other than documents, to be introduced at trial. Said photograph will be included in the Court file and the actual exhibit will be returned to the party.



JUDGE JULIE K AELIN
JEFFERSON CIRCUIT COURT,
DIVISION FOUR (4)

copies to: counsel of record

Zoom Meeting ID 502-595-4604, Password 4604
By phone, call 1-309-205-3325, enter Meeting ID 502-595-4604 and Password 4604